

Court No. - 21

Case :- WRIT - C No. - 17588 of 2015

Petitioner :- Mohammad Iqbal Ansari

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Iqbal Ahmad

Counsel for Respondent :- C.S.C.,Dr. S.K. Yadav

Hon'ble Vikram Nath,J.

Hon'ble Dinesh Gupta,J.

Dr S.K.Yadav learned counsel appearing for the respondent Nos.2 and 3 may obtain instructions within a week.

Put up this case in the additional cause list on 7th April 2015.

Order Date :- 1.4.2015

cps

Court No. - 36

Case :- WRIT - C No. - 17588 of 2015

Petitioner :- Mohammad Iqbal Ansari

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Iqbal Ahmad

Counsel for Respondent :- C.S.C.,Dr. S.K. Yadav

Hon'ble Rajes Kumar,J.

Hon'ble Shamsher Bahadur Singh,J.

Let petitioner may implead landlady, Smt. Shahjahan Begum as respondent no.4.

Learned Standing Counsel has accepted notice on behalf of respondent no.1. Dr. S.K. Yadav has accepted notices on behalf of respondent nos. 2 and 3.

Issue notice to newly impleaded respondent no.4. Petitioner may take steps to serve notice upon respondent no.4 by Registered Post within one week.

All the respondents may file counter affidavit within four weeks. Rejoinder affidavit may be filed within two weeks thereafter.

The petitioner claims himself to be a tenant of the premises in dispute of which Smt. Shahjahan Begum is landlady. It is urged that petitioner is not having good relationship with landlady. Therefore, it is not possible to get her consent for the connection of electricity as required under Sub-section (6) of Clause 4.4 of Electricity Supply Code 2005. The Division Bench of this Court in judgement of Ravi Shanker Giri and in Writ Petition No.71425 of 2013 (Iftikhar Ahsan v. State of U.P.) has held that unless there is consent of owner of premises which is the requirement of Code of Electricity 2005 electricity connection cannot be granted but the learned counsel for the petitioner placed reliance on the Division Bench decision of this Court in Seema Mansoor Versus U.P. Power Corporation reported in [2014(6) ADJ 672 wherein it has been held that electricity connection may be given in the absence of consent of landlord on furnishing of indemnity bond.

There appears to be two conflicting opinions of two Division Benches. Therefore, prima facie, we are of the view that the matter is liable to be referred to larger Bench. However, this issue will be considered on the next date after the exchange of the affidavits.

List in the week commencing 11th May, 2015.

Order Date :- 8.4.2015

MN/-

Court No. - 34

Case :- WRIT - C No. - 17588 of 2015

Petitioner :- Mohammad Iqbal Ansari

Respondent :- State of U.P. and others

Counsel for Petitioner :- Iqbal Ahmad

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Heard Sri Iqbal Ahmad, Advocate, for petitioner. Dr. S.K. Yadav, Advocate, has accepted notice on behalf of respondents-2 and 3 and his name is also shown in the cause list, but he has not put in appearance though this matter has been called in revised. So far as respondent-4 is concerned, notice was issued by registered post A.D. on 18.04.2015. Perused the report dated 08.05.2015. Service upon respondent-4 is deemed sufficient. Neither Respondent-4 has put in appearance through counsel nor present in person. Learned Standing Counsel representing respondent-1 is present but states that State is formal party and real contesting parties are respondents- 2 to 4. In the circumstances, we proceed to decide this writ petition after hearing learned counsel for petitioner.

2. Petitioner claims to be an occupant of House No. 90, Sujampur, Shyam Nagar, Kanpur as a tenant and his tenancy rights have been recognized by Civil Judge, Junior Division (City), Kanpur Nagar in Original Suit No. 898 of 2011 decided vide judgment dated 31.07.2012, still electricity connection has been declined by Executive Engineer, Delhi Sujampur Khand, KESKO, Kanpur Nagar only on the ground that no valid power of attorney or rent receipt or lease agreement has been filed by petitioner.

3. It is evident from record that there is a landlord-tenant dispute between petitioner and landlord. In these circumstances, once a document of valid occupancy has been filed by petitioner before Executive Engineer, that is sufficient, in our view, to treat his

occupancy valid entitling for electricity connection subject to completion of other formalities. The requirement in the application is also that applicant seeking electricity connection must file a document of valid occupation, if he is not owner of premises in question. Clause (ii) of the application reads as under:

“2. परिसर के विधिपूर्ण अधिभोग के समर्थन में दस्तावेजी साक्ष्य। यदि आवेदक परिसर का स्वामी नहीं है, तो अनुप्तिधारी द्वारा यथा विनिर्दिष्ट क्षतिपूर्ति बन्ध-पत्र संलग्न किया जाए।”

“Documentary evidence in support of the lawful occupation of the premises. If applicant is not the owner of the premises, the indemnity bond as prescribed be annexed to by the licence holder.” (English Translation by Court)

4. It nowhere requires that it should only be rent receipt or lease agreement. Petitioner is not a trespasser as is evident from judgment of Civil Court and this is a document which satisfy requirement of valid occupancy of premises in dispute.

5. The question as to whether and in what circumstances, electric connection can be allowed to an occupant of a premises, who has got possession of premises validly, though not owner, has been considered by a Division Bench of this Court in **Seema Mansoor Vs. U.P. Power Corporation Ltd. Lucknow and others 2014 (6) ADJ 672** wherein in para 16, 17 and 19, Court has said as under:

“16. From the reading of the aforesaid provisions, it is clear that licensee is under an obligation to supply electrical energy on a proper application being made and every owner or occupier, which will include a tenant, of the premises has statutory right to apply and obtain electricity supply from the licensee subject to his fulfilling requirements under the provisions of the Electricity Act, 2003 and the Electricity Supply Code 2005. Thus, an application for grant of electricity connection cannot be refused by licensee on the ground that

there is no consent of the landlord. From the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord.

17. Apart from above giving interpretation to the provision suggested by the learned counsel for the respondents would tantamount to nullifying the benefits and protection extended to tenant under the Rent Control Act. A scrupulous landlord would get the electricity connection disconnected, of the premises owned by him and in occupation of tenant, and shall never give his no objection to fresh electricity connection to the tenant forcing him to vacate the premises making the provisions of the Rent Control Act nugatory. Such interpretation shall not only be in the teeth of the provisions of the Act but also opposed to public policy.”

“19. In view of the aforesaid facts and discussions, the petitioner being occupier of the premises in question as a tenant has a legal right to obtain electricity connection and the respondents licensee was under an obligation to give connection for supply of electrical energy and the same could not have been refused solely for want of consent of the owner/landlord of the premises.”

6. We, therefore, allow this writ petition and set aside the order dated 11.12.2014 passed by Executive Engineer and direct him to proceed in the matter for grant of electric connection to petitioner subject to completion of other formalities which shall be completed expeditiously, and, in any case, within one month from the date of production of a certified copy of this order.

Dt. 24.10.2017

PS